

02:00 PM **LINE 9**

25-CLJ-00490

BLACK DIAMOND PAVER STONES & LANDSCAPE, INC. VS. NAOMI B. TURE, ET AL.

BLACK DIAMOND PAVER STONES & LANDSCAPE, INC.
NAOMI B. TURE

ANTHONY J. KEILEY
ERNEST BROWN

Plaintiff and Cross-Defendant Black Diamond Paver Stones & Landscape, Inc.'s Motion to Change its Attorney of Record

TENTATIVE RULING:

Plaintiff and cross-defendant Black Diamond Paver Stones & Landscape, Inc.'s Motion to Change its Attorney of Record is **GRANTED**.

Plaintiff had been represented by Anthony J. Keiley, III, Esq. (State Bar No. 104578), of the Law Offices of Anthony J. Keiley, III. Mr. Keiley has died and plaintiff seeks an order permitting it to change its attorney of record to Patrick J. Whitehorn, of Last, Faoro & Whitehorn pursuant to Code of Civil Procedure, section 284.

Mr. Keiley was a sole practitioner and had no partners or other co-counsel to take over this case upon his death or sign a substitution of counsel. (Whitehorn Decl., ¶¶ 4-5.) Mr. Whitehorn is an attorney in good standing with the State Bar of California. (*Id.*, ¶ 1.) Plaintiff is a legal entity and cannot appear in court except through counsel. A "corporation may not proceed in propria persona." (*Thomas G. Ferruzzo, Inc. v. Superior Ct.* (1980) 104 Cal.App.3d 501, 504, discussing *Merco Construction Engineers, Inc. v. Mun. Ct.* (1978) 21 Cal.3d 724.) The court therefore grants the motion.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, Mr. Whitehorn shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 10**

25-CLJ-04491

RICHARD KASS VS. ELENA SUAREZ

RICHARD KASS
ELENA SUAREZ

ANDREW B. PETERS
PRO SE

Defendant's Motion to Set Aside Default

TENTATIVE RULING:

Defendant Elena Suarez's Motion to Set Aside Entry of Default is **DENIED**.

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect; application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. (Code Civ. Proc., § 473 subd. (b).) The six month period begins to run when a default, not the default judgment, is entered. (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 59-60.)

Here, default was entered against defendant on July 28, 2025, and defendant's Motion to Set Aside Default was filed on April 6, 2026, over seven months later. Defendant's Motion is therefore untimely and is not eligible for relief under Code of Civil Procedure, section 473 subdivision (b).

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.
